

as the said Act, whether by virtue of this or of any subsequent Act, continues in force.

Amendment
as to appli-
cation of
Act to Scilly
Islands.

2.—(1) The Minister of Health, in estimating from time to time for the purposes of section three of the Agricultural Rates Act, 1923, the deficiency arising by reason of the provisions of that Act in the produce of the rates made by the Council of the Isles of Scilly, shall include therein any deficiency arising as aforesaid in the produce of such part of any rate made in the said Isles as appears to the Minister to have been levied for the purpose of meeting expenditure in connection with the relief of the poor in the said Isles.

(2) This section shall be deemed to have had effect as from the thirtieth day of September, nineteen hundred and twenty-four.

Short title.

3. This Act may be cited as the Agricultural Rates (Additional Grant) Continuance Act, 1925.

CHAPTER 11.

An Act to make provision with respect to the number of councillors of boroughs, and metropolitan boroughs, and matters incidental thereto. [27th March 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Alteration
of number of
councillors
of boroughs.
45 & 46 Vict.
c. 50.
56 & 57 Vict.
c. 9.

1. The powers of dividing boroughs into wards and altering wards conferred by section thirty of the Municipal Corporations Act, 1882, as amended by the Municipal Corporations Act, 1893, shall be extended so as to include power to alter the number of councillors of a borough and in the case of a borough divided into wards, to apportion or alter the apportionment of the councillors among the wards, and accordingly a petition may be presented by the council of a borough under that section as so amended praying for an alteration of the number

of councillors of the borough, either with or without a division of the borough into wards or an alteration of the number or boundaries of the wards; and for the purposes of any such petition and the proceedings thereon, the provisions of the said section shall apply with the necessary modifications, save that in the case of a petition presented by the council of a borough not divided into wards praying only for an alteration of the number of councillors of the borough, the Order in Council fixing the number of councillors of the borough shall take effect from such date as may be specified therein, and subsections (3) to (15) of the said section shall not apply:

2.—(1) The powers of the Secretary of State under section twenty-six of the London Government Act, 1899 (which relates to the alteration of wards of metropolitan boroughs) shall be extended so as to include power, whenever he is satisfied that a *prima facie* case is made out for a proposal for the alteration of the number of councillors of a metropolitan borough, to cause such inquiries to be made and such notices to be given as he may think expedient, and, if satisfied that the proposal is desirable, to make an order altering the number of councillors of the borough and the apportionment of the councillors among the wards and the said section as amended by any subsequent enactment shall have effect accordingly.

Alteration
of number
of councillors
of metro-
politan
boroughs.
62 & 63 Vict.
c. 14.

(2) For the purposes of any alteration of the apportionment of the councillors amongst the wards, the requirement in subsection (2) of section two of the London Government Act, 1899, that the number of councillors assigned to each ward shall be a number divisible by three, shall be deemed not to apply.

3. Any Order in Council or scheme under section thirty of the Municipal Corporations Act, 1882, as extended by this Act, and any order of the Secretary of State under section twenty-six of the London Government Act, 1899, as so extended, may contain such incidental, consequential, and supplemental provisions as appear to be necessary or proper for bringing into operation, and giving full effect to, the order or scheme.

Conse-
quential pro-
visions.

4. This Act may be cited as the Borough Councillors (Alteration of Number) Act, 1925.

Short title.